

MANILA LAW COLLEGE • JURIS DOCTOR PROGRAM

CONSTITUTIONAL LAW 1

Comprehensive Course Lecture Outline, Constitutional Provisions, Doctrines & Assigned Cases

★ CONSTITUTIONAL LAW 1 COURSE SYLLABUS & LECTURE STRUCTURE

Subject Code & Name: Constitutional Law 1 (1987 Philippine Constitution)

Course Coverage: Structure, Principles, State Immunity, Separation of Powers, and Three Great Branches (Legislative, Executive, Judicial)

Constitutional Core: Preamble, Articles I through XVIII of the 1987 Constitution

Syllabus Integration: Topics I through VII with complete doctrinal analyses, constitutional requisites, multi-factor tests, and statutory cross-references.

TOPIC I: THE PHILIPPINE CONSTITUTION

Course Mandate: Memorize the Preamble and all the Articles of the 1987 Constitution

1. Definition, Nature, Concept and Purpose of a Constitution

Definition: The organic and fundamental law of a nation or state, which establishes the character and basic principles of the government, organizes the government, and regulates, distributes, and limits the functions of its different departments.

Nature and Concept: Supreme, permanent, and fundamental law of the land; all statutes, executive orders, administrative regulations, and municipal ordinances must conform to it.

Purpose: To prescribe the permanent framework of a system of government, assign to the different departments their respective powers and duties, and establish fixed first principles on which the government is conducted.

2. Classification of Constitutions

Written vs. Unwritten: Written (embodied in a single formal instrument, e.g., 1987 Philippine Constitution) vs. Unwritten (rules resulting from customs, judicial decisions, and scattered statutes, e.g., British Constitution).

Cumulative/Evolved vs. Enacted/Conventional: Evolved through long historical growth vs. enacted by a constituent body at a definite time.

Rigid vs. Flexible: Rigid (requires a special difficult procedure for amendment/revision) vs. Flexible (can be amended through ordinary legislative processes).

3. Qualities of a Good Written Constitution

Broad: Must provide for the organization of the entire government and cover all vital state functions and unforeseen contingencies.

Brief: Must confine itself to basic fundamental principles and broad outlines, leaving details to statutory legislation.

Definite: Must express provisions in clear, unambiguous language to avoid conflicting interpretations and constitutional deadlocks.

4. Essential Parts of a Written Constitution

Constitution of Government: Provisions setting up the framework of government, defining powers, and assigning duties (e.g., Articles VI, VII, VIII, IX, X).

Constitution of Liberty: Provisions prescribing fundamental civil and political rights of citizens and imposing limitations on government powers (e.g., Article III - Bill of Rights).

Constitution of Sovereignty: Provisions outlining the mode and procedure for amending or revising the constitution (e.g., Article XVII - Amendments or Revisions).

5. Effectivity of the 1987 Philippine Constitution (Art. XVIII, Sec. 27)

Date of Effectivity: Took effect on February 2, 1987, the date of its ratification in the nationwide plebiscite, not the date of proclamation of the results (*De Leon vs. Esguerra*, 153 SCRA 602).

Status of Prior Laws and Agreements (Art. XVIII, Secs. 3 & 4): All existing laws, decrees, executive orders, proclamations, letters of instructions, and other executive issuances not inconsistent with the Constitution remain operative until amended, repealed, or revoked.

6. Amendments and Revision (Art. XVII, Secs. 1 to 4)

Amendment vs. Revision (*Lambino vs. COMELEC*, G.R. No. 174153):

- Amendment: A piecemeal change, addition, or deletion that does not alter the basic principles, fundamental structure, or division of governmental powers.
- Revision: A broad, overarching change that alters the basic principles, constitutional structure, or system of government (e.g., changing from Unitary to Federal, or Presidential to Parliamentary).
- Two-Part Test for Distinguishing Amendment from Revision: (1) Quantitative Test (whether changes are so extensive and numerous as to affect the entire constitution), and (2) Qualitative Test (whether changes alter the fundamental structure of government or distribution of sovereign powers).

Procedure: Proposal Stage (Art. XVII, Secs. 1-3):

1. By Congress: Acting as a Constituent Assembly by a vote of 3/4 of all its members (understood as 3/4 of Senate and 3/4 of House of Representatives voting separately).
2. By Constitutional Convention (Con-Con): Called into existence by 2/3 vote of all members of Congress, or by a majority vote of Congress submitting the question of calling a Con-Con to the people in a plebiscite (*Imbong vs. COMELEC*, 35 SCRA 28).
3. By People's Initiative: Direct petition of at least 12% of total registered voters nationwide, with each legislative district represented by at least 3% of registered voters. Limitation: Cannot be authorized within 5 years following ratification of Constitution, nor more often than once every 5 years thereafter (*Defensor-Santiago vs. COMELEC*; *Lambino vs. COMELEC*).

Procedure: Ratification Stage (Art. XVII, Sec. 4) & Doctrine of Proper Submission:

- Doctrine of Proper Submission: All proposed constitutional amendments or revisions must be submitted for ratification in a single plebiscite with a proper frame of reference; piecemeal submission of revisions is prohibited (Tolentino vs. COMELEC, 41 SCRA 702).
- Plebiscite may be held on the same day as regular elections (Gonzales vs. COMELEC, 21 SCRA 774; Occeña vs. COMELEC, 104 SCRA 1; Almario vs. Alba, 127 SCRA 69).

Judicial Review of Amendments: Courts have jurisdiction to review the constitutionality of the amending process (Javellana vs. Executive Secretary, 50 SCRA 30).

TOPIC II: THE PHILIPPINES AS A STATE

Course Mandate: National Territory, Elements of Statehood, Doctrine of State Immunity, Exceptions & Waivers

1. National Territory (Art. I) & Archipelagic Doctrine

Scope: The Philippine archipelago, with all islands and waters embraced therein, and all other territories over which the Philippines has sovereignty or jurisdiction.

Internal Waters: The waters around, between, and connecting the islands of the archipelago, regardless of their breadth and dimensions, form part of the internal waters of the Philippines.

Archipelagic Doctrine: Treats an archipelago as a single unified territorial unit by drawing straight baselines connecting outermost points of outermost islands.

2. Doctrine of State Immunity (Art. XVI, Sec. 3)

Constitutional Principle: 'The State may not be sued without its consent.' Rooted in the traditional concept of sovereignty and the public policy against diverting public funds and resources to defend private suits.

Entitlement to Immunity - Political vs. Justiciable Question: Determination of sovereign immunity of foreign states is a recognized executive function (The Holy See vs. Rosario, 238 SCRA 524; Liang vs. People, G.R. No. 125865; Arigo vs. Swift, G.R. No. 206501).

Immunity of International Organizations and Agencies: Enjoy functional immunity pursuant to international conventions and headquarters agreements (SEAFDEC vs. NLRC; Callado vs. IRRI; DFA vs. NLRC).

Immunity of Government Agencies:

- Incorporated Agencies: Have separate charters and may sue and be sued; liable for torts when engaging in proprietary functions (Fontanilla vs. Maliaman, 194 SCRA 486).
- Unincorporated Agencies: Performing purely governmental functions enjoy state immunity (Farolan vs. CTA, 217 SCRA 298); performing proprietary/commercial functions may be sued (China National Machinery vs. Santamaria; CAA vs. CA).

Suability vs. Liability: Suability depends on consent to be sued; liability is determined by legal rules and evidence (Meritt vs. Government of the Philippine Islands, 34 Phil. 311).

Waiver of State Immunity:

1. Express Consent: General Law (Act No. 3083, CA 327, PD 1445 - money claims before COA; UP vs. Dizon) or Special Law (Arts. 2180 & 2189 Civil Code; City of Manila vs. Teotico; Republic vs. Feliciano).

2. Implied Consent: Entering into commercial/proprietary contracts under the Restrictive Doctrine of State Immunity (USA vs. Ruiz, 136 SCRA 487) or commencing affirmative lawsuits against private individuals (Froilan vs. Pan Oriental Shipping).

Consent to be Sued Does Not Include Consent to Execution: Public funds and municipal properties cannot be seized or garnished without prior appropriation ordinance (Municipality of San Miguel vs. Fernandez; Municipality of Makati vs. CA).

Suits Against Public Officers & Injustice Exception: State immunity cannot be used as a shield to perpetrate an injustice or protect ultra vires, tortious, or illegal acts of officers (Wylie vs. Rarang, 209 SCRA 357; Arigo vs. Swift).

TOPIC III: THE FUNDAMENTAL POWERS OF THE STATE

Course Mandate: Police Power, Eminent Domain (Takings & Just Compensation), and Taxation

1. Comparative Matrix of Fundamental Powers

Police Power: Power to regulate liberty and property for the promotion of public health, safety, morals, and general welfare. Authority: Inherently legislative. Compensation: Altruistic feeling of contributing to the general welfare.

Eminent Domain: Power to take private property for public use upon payment of just compensation. Authority: Legislative (delegable to LGUs, public utilities). Compensation: Full and fair market equivalent of the property taken.

Taxation: Power to levy proportional contributions on persons and property for the support of the government and public needs. Authority: Exclusively legislative. Compensation: Protection and benefits received from the government.

2. Police Power: Requisites & Jurisprudence

Requisites for Valid Exercise: (1) Lawful Subject (public interest requires state interference), and (2) Lawful Means (means employed are reasonably necessary and not unduly oppressive).

MMDA Lacks Police Power: MMDA has administrative coordination powers only; it cannot enact ordinances or exercise police power (MMDA vs. Bel-Air Village Association, 328 SCRA 836).

Valid Regulations: Deployment bans for overseas workers (PASEI vs. Drilon); videogram regulatory taxation (Tio vs. VRB); taxicab age limits (Taxicab Operators vs. BOT); senior citizen/PWD 20% discounts (Southern Luzon Drug Corp. vs. DSWD).

Invalid Exercises: City mayor imposing unauthorized medical conditions on optical shops (Acebedo Optical vs. CA); municipal ordinance banning aerial spraying without scientific proof of harm (Mosqueda vs. PBGEA).

3. Eminent Domain (Art. III, Sec. 9): Takings & Just Compensation

Requisites for Valid Expropriation: (1) Private property, (2) Genuine necessity, (3) Public use, (4) Payment of just compensation, and (5) Due process.

LGU Expropriation Requirement: Section 19 of RA 7160 strictly requires an Ordinance, not a mere resolution (Heirs of Suguitan vs. City of Mandaluyong, 328 SCRA 137).

Public Use Concept: Includes tourism, agrarian reform, urban housing, and economic infrastructure (Heirs of Ardon vs. Reyes; SMI Development vs. Republic).

Abandonment of Public Purpose: Previous landowners have the right to repurchase property if public project is abandoned (Estate of Salud Jimenez vs. PEZA; MCIAA vs. Lozada).

Non-Payment of Just Compensation: Non-payment within 5 years from finality entitles owner to recover possession (Republic vs. Lim, G.R. No. 161656).

What Constitutes 'Taking': Compelling free media space (PPI vs. COMELEC) or prohibiting commercial parking fees (OSG vs. Ayala Land) is an unconstitutional taking without compensation.

Inverse Condemnation: Taking without formal expropriation entitles owner to compensation at time of taking plus legal interest (NPC vs. Heirs of Sangkay; DPWH vs. Spouses Tecson).

Judicial Determination of Just Compensation: Exclusive court prerogative; DARAB and administrative formulas serve as non-binding guidelines (LBP vs. Dalauta; Alfonso vs. LBP; Republic vs. Judge Mupas).

4. Power of Taxation

Requisites for Valid Exercise: Must be for a public purpose, uniform and equitable (Art. VI, Sec. 28[1]), within jurisdiction of taxing authority, and compliant with due process.

TOPIC IV: STATE POLICIES, PRINCIPLES AND GENERAL CONSIDERATIONS

Course Mandate: Republicanism, Separation of Powers, Ecology, Nationalist Provisions, Regalian Doctrine, Language

1. Republicanism & Separation of Powers (Art. II, Sec. 1)

Separation of Powers: Legislative enacts, Executive executes, Judiciary interprets. Prevents concentration of despotic power (MMDA vs. Manila Bay; Belgica vs. Ochoa).

Checks and Balances: Veto power of President, Congressional override, Senate treaty concurrence, Judicial Review of grave abuse of discretion (Gonzales III vs. Office of the President).

Non-Delegation of Legislative Powers: 'Potestas delegata non delegari potest'. Two Fundamental Tests: (1) Completeness Test (statute sets forth the policy to be executed), and (2) Sufficient Standard Test (statute defines boundaries and limits of administrative discretion) (Belgica vs. Ochoa).

2. State Principles & Policies

Incorporation Doctrine (Art. II, Sec. 2): Adopts generally accepted principles of international law as part of the law of the land.

Civilian Supremacy (Art. II, Sec. 3): Civilian authority is at all times supreme over the military (Garcia vs. Executive Secretary).

Separation of Church and State (Art. II, Sec. 6): No state religion, no religious tests, non-establishment clause (Art. III, Sec. 5).

Balanced and Healthful Ecology (Art. II, Sec. 16): Self-executing right imposing intergenerational responsibility (Oposa vs. Factoran).

Academic Freedom (Art. XIV, Sec. 5[2]): Protects educational institutions in determining who may teach, what to teach, how to teach, and who may be admitted (Cadet Cudia vs. PMA).

Recovery of Ill-Gotten Wealth (Art. XI, Sec. 15): State right to recover unlawfully acquired assets does not prescribe (Behest Loans vs. Desierto).

3. Regalian Doctrine & Nationalist Economic Provisions

Regalian Doctrine (Art. XII, Sec. 2): All lands of the public domain, waters, minerals, and natural resources belong to the State (Cruz vs. Sec. of DENR; Resident Marine Mammals vs. Reyes).

60-40 Rule for Public Utilities (Art. XII, Sec. 11): 60% Filipino ownership applies to both voting control and beneficial ownership (Roy III vs. Herbosa).

Ban on Foreign Land Ownership (Art. XII, Sec. 7): Foreign nationals and foreign corporations cannot acquire private lands (PNOC vs. Keppel).

Mass Media & Advertising: 100% Filipino for mass media (Art. XVI, Sec. 11[1]); 70% Filipino for advertising (Art. XVI, Sec. 11[2]).

Language Classifications (Art. XIV, Secs. 6-8): National Language (Filipino), Official Languages (Filipino and English), Auxiliary (Regional dialects).

TOPIC V: LEGISLATIVE DEPARTMENT

Course Mandate: Bicameral Congress, Apportionment, Immunities, Disqualifications, Inquiries, Impeachment, Veto

1. Structure & Composition of Congress (Art. VI, Secs. 1-6)

Senate: 24 Senators elected at large for 6-year terms; maximum of 2 consecutive terms (Trillanes vs. Pimentel).

House of Representatives: District representatives + Party-List representatives (20% of total House).

Apportionment rules: 250,000 population requirement applies to cities, not whole provinces (Aquino vs. COMELEC; Bagabuyo vs. COMELEC; Sema vs. COMELEC).

2. Parliamentary Immunities & Disqualifications

Immunity from Arrest (Art. VI, Sec. 11): Covers offenses punishable by not more than 6 years imprisonment while Congress is in session. Does not apply to severe crimes or criminal detention (People vs. Jalosjos).

Speech and Debate Clause (Art. VI, Sec. 11): Absolute immunity for speeches delivered in Congress; does not bar internal House discipline (Osmeña vs. Pendatun; Pobre vs. Santiago).

Incompatible Offices vs. Forbidden Offices (Art. VI, Sec. 13): Cannot hold incompatible public office without forfeiting seat (Liban vs. Gordon); cannot be appointed to forbidden office created during term.

3. Electoral Tribunals & Commission on Appointments

Electoral Tribunals (Art. VI, Sec. 17): Senate Electoral Tribunal (SET) and House of Representatives Electoral Tribunal (HRET) are sole judges of election, returns, and qualifications of members (Pimentel vs. HRET; Vilando vs. HRET).

Jurisdiction Commencement: HRET jurisdiction begins upon valid proclamation, oath, and assumption of office (Reyes vs. COMELEC; Velasco vs. Belmonte; Abayon vs. COMELEC).

4. Powers of Congress & Inquiries in Aid of Legislation

Legislative Oversight (ABAKADA Guro vs. Purisima): Scrutiny, Congressional Investigation, Legislative Supervision. Legislative veto is unconstitutional.

Inquiries in Aid of Legislation (Art. VI, Sec. 21): Must be in aid of legislation, in accordance with published rules, with rights of witnesses respected (Garcilliano vs. House).

Executive Privilege: Valid claims cover Presidential Communications, military/diplomatic secrets, closed investigations (Senate vs. Ermita; Neri vs. Senate; AKBAYAN vs. Aquino; Gudani vs. Senga).

Contempt Power: Inherent in Congress to enforce inquiries (Arnault vs. Nazareno); local councils lack contempt power (NORECO vs. Dumaguete).

5. Power of Impeachment (Art. XI, Secs. 2-3)

Impeachable Officers: President, Vice-President, Members of Supreme Court, Members of Constitutional Commissions, Ombudsman.

Grounds: Culpable violation of the Constitution, treason, bribery, graft and corruption, other high crimes, or betrayal of public trust.

Procedure: Verified complaint initiated in House (1/3 endorsement sends articles immediately to Senate); Senate conducts trial (2/3 vote to convict). Quo warranto is a distinct judicial remedy (Republic vs. Sereno; David vs. GMA; Lecaroz vs. Sandiganbayan).

6. Legislative Limitations & Presidential Veto (Art. VI, Secs. 24 & 27)

Exclusive Origination in House: Appropriation, revenue, tariff bills, bills authorizing increase of public debt, private bills, and bills of local application.

Presidential Veto: General veto vs. Item veto (appropriation, revenue, tariff). Inappropriate provisions cannot be inserted into budget bills.

TOPIC VI: EXECUTIVE DEPARTMENT

Course Mandate: The Presidency, Succession, Prohibitions, Powers of Control, Appointment, Military, and Clemency

1. The President & Succession (Art. VII, Secs. 1-11)

Qualifications: Natural-born citizen, registered voter, able to read and write, at least 40 years of age on election day, resident of the Philippines for at least 10 years.

Presidential Succession: Permanent vacancy before term (VP elect); permanent vacancy during term (VP succeeds as President - Estrada vs. Desierto); temporary vacancy (VP acts as Acting President).

2. Prohibitions on the President & Cabinet (Art. VII, Sec. 13)

Strict Ban on Multiple Offices: President, VP, Cabinet members, and deputies cannot hold any other office or employment during their tenure (Civil Liberties Union vs. Executive Secretary; Public Interest Center vs. Elma).

Ex-Officio Exception: Allowed only if expressly authorized by the Constitution or strictly ex-officio without additional compensation (Juico Clarificatory Resolution).

3. Presidential Immunity from Suit

Absolute immunity from suit during incumbency; protects the President from harassment and distraction. Personal privilege that may be waived (Soliven vs. Makasiar).

4. Powers of the President

Executive Power & Residual Powers (Art. VII, Secs. 1 & 17; Marcos vs. Manglapus).

Control Power & Qualified Political Agency: President controls all executive departments, bureaus, and offices. Acts of department secretaries performed in regular course of business are presumptively acts of the President (Ocampo vs. Enriquez; PSALM vs. CIR).

General Supervision over LGUs: Limited to ensuring local officials obey laws; does not include control (Ganzon vs. CA).

Appointing Power (Art. VII, Secs. 14-16; Lacson vs. Romero; Aguinaldo vs. Aquino III):

- Midnight Appointments Ban (Art. VII, Sec. 15): 2 months immediately before next presidential election until end of term; applies to lower courts (Valenzuela & Vallarta; Velicaria-Garafil) but NOT to the Supreme Court (De Castro vs. JBC).

Military Powers & Commander-in-Chief Clause (Art. VII, Sec. 18):

1. Calling Out Powers: Sole discretion of President; lowest tier (David vs. GMA; Kulayan vs. Tan; IBP vs. Zamora).
2. Suspension of Writ of Habeas Corpus & Martial Law: Requisites (actual invasion or rebellion, when public safety requires it); maximum 60 days; Open Court Doctrine applies (Olague vs. Military Commission); subject to SC judicial review and Congressional revocation (Lagman vs. Executive Secretary; Padilla vs. Congress).

Executive Clemency (Art. VII, Sec. 19): Pardon (remits penalty), Amnesty (erases offense, requires Congressional concurrence), Commutation, Reprieve (Monsanto vs. Factoran; Garcia vs. Chairman; In Re Torres).

Emergency Powers & Augmentation: Delegated emergency powers (Art. VI, Sec. 23[2]); Augmentation ban on cross-border transfers (Araullo vs. Aquino / DAP Case); Impoundment requires statutory authority (PHILCONSA vs. Enriquez).

TOPIC VII: JUDICIAL DEPARTMENT

Course Mandate: Judicial Power, Judicial Review Requisites, Safeguards of Independence, The Supreme Court, and JBC

1. Judicial Power (Art. VIII, Sec. 1) & Expanded Jurisdiction

Traditional Judicial Power: Duty of courts to settle actual controversies involving rights which are legally demandable and enforceable.

Expanded Judicial Power: Duty to determine whether there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government (Garcia vs. Drilon).

Political Question Doctrine: Questions which under the Constitution are to be decided by the people in their sovereign capacity or full discretionary authority is delegated to the legislative or executive branch (Vinuya vs. Executive Secretary).

2. Requisites for the Proper Exercise of Judicial Review

1. Actual Case or Controversy: Existing conflict involving legal relations; not moot, hypothetical, or academic (Save the SC Judicial Independence Movement; ISAAA vs. Greenpeace).

2. Proper Party (Locus Standi): Direct Injury Test (Southwing). Exceptions: Intergenerational responsibility (Oposa vs. Factoran), Transcendental importance (Ocampo), Legislator's suit (Saguisag vs. Ochoa), Steward of Nature / Writ of Kalikasan (West Tower; Segovia; Resident Marine Mammals).

- Facial Challenges vs. As-Applied: Facial challenges allowed in free speech / overbreadth, not penal laws (Southern Hemisphere; Disini vs. SOJ; Imbong vs. Ochoa; SPARK vs. QC).

3. Earliest Opportunity: Constitutional question must be raised at the earliest opportunity in pleadings.

4. Lis Mota / Constitutional Necessity: Case cannot be resolved on any other ground (Lalican vs. Vergara; Doctrine of Purposeful Hesitation - Drilon vs. Lim; Doctrine of Operative Fact - Republic vs. CA).

3. Constitutional Safeguards of Judicial Independence

Fiscal Autonomy (Art. VIII, Sec. 3): Appropriations cannot be reduced below previous year's amount and must be automatically released (Re: COA Opinion on Retired Justices).

Security of Tenure (Art. VIII, Sec. 11): Justices and judges hold office during good behavior until age 70 or incapacitated.

Disciplinary Jurisdiction (Art. VIII, Sec. 6): Supreme Court has exclusive administrative supervision and disciplinary power over all lower courts and court personnel (Maceda vs. Vasquez; De Vera vs. Pelayo; Among vs. CSC; Carpio-Morales vs. CA; Estipona vs. Lobrigo; Mamiscal vs. Abdullah).

4. The Supreme Court & Judicial and Bar Council (Art. VIII, Secs. 4, 8 & 9)

Composition: Chief Justice + 14 Associate Justices. Sessions: En Banc or in Divisions of 3, 5, or 7 members (SM Land vs. BCDA).

Periods to Decide (Art. VIII, Sec. 15): 24 months for Supreme Court, 12 months for lower collegiate courts, 3 months for other lower courts (Sesbreño vs. CA).

Judicial and Bar Council (JBC): Principal function is recommending appointees to the Judiciary. Composition: Chief Justice (ex-officio Chair), Secretary of Justice, One representative of Congress (Chavez vs. JBC; Umali vs. JBC), IBP representative, Professor of Law, Retired SC Justice, Private Sector representative (Jardeleza vs. Sereno; Judge Villanueva vs. JBC).